

		Given the above compliance, no basis for an additional monetary sanction has been shown. Additionally, Defendants cite no authority which permits a monetary sanction, solely for failure to pay an earlier monetary sanction. As explained by the Court in <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, a further monetary sanction is unnecessary, as the initial monetary sanction has “the force and effect of a money judgment” and is “immediately enforceable through execution....” (<i>Id.</i> at p. 615.) Defendants’ Request for Judicial Notice is GRANTED, as to Exhibits A through E, as the identified documents are court records, subject to judicial notice pursuant to Evidence Code section 452, subdivision (d). The Request for Judicial Notice is DENIED, as to Exhibits F and G, as the attached correspondences are not appropriate for judicial notice, given they could reasonably be disputed.
59	Dascanio vs. Arsenian 22-01257590	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment or Summary Adjudication brought by Cross-Defendants Benjamin Arsenian and the Law Offices of Benjamin Arsenian to adjudicate the claims alleged by Cross-Complainant Dennis Dascanio and his law office (ROA 751) is DENIED. The moving Cross-Defendant Arsenian and his law firm will be jointly referred to as ARSENIAN. The opposing party, Cross-Complainant Dascanio and his law firm will be jointly referred to as DASCANIO. Initially, Arsenian Cross-Defendant requests adjudication in their favor, based on their assertion that Dascanio’s Cross-Complaint is attempting to relitigate the sufficiency of a fee-sharing agreement, which this Court has already found to be unenforceable. (See Motion: 8:6-11:6) However, Arsenian subsequently concedes that the issues raised within the Cross-Complaint differ from those previously determined: “The Court’s prior ruling did not find that Arsenian owed Santamaria a duty to deposit settlement funds into an account jointly controlled with Dascanio [and] did not find that Arsenian was liable to Santamaria for delayed settlement payment...” (Motion: 10:19-21.) As it is these later issues which are raised within the Cross-Complaint and <i>not</i> the sufficiency of the fee-sharing agreement between Arsenian and Dascanio, the issues are not identical, and collateral estoppel does not apply. (<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335, 341.)

		Additionally, Arsenian offered no evidence relevant to the issues raised within the Cross-Complaint, necessarily, triable issues remain. In seeking summary judgment, Arsenian <i>repeatedly</i> reference the fact that the Cross-Complaint(ROA 359) brought by Marco Santamaria is directed solely against Dascanio. (See SSUF Nos. 1 and 35; See also Motion: 2:4-9, 11:16-17, 12:4-10, 13:18-25 and 16:27-17:5.) The allegations made by Mr. Santamaria are the subject of nearly <i>half</i> of Arsenians undisputed facts (See SSUF Nos. 1-14 and 32-35); however, the Reply concedes that “Santamaria did not have to sue Arsenian before Dascanio could seek equitable indemnity...” (Reply: 2:23-24.) As noted by Cross-Complainants, courts have held that “plaintiffs should no longer have the unilateral right to determine which defendant or defendants should be included in an action....” (<i>Evangelatos v. Superior Court</i> (1988) 44 Cal.3d 1188, 1197.) Additionally, defendants have the option to “bring other tortfeasors who were allegedly responsible for the plaintiff’s injury into the action through cross-complaints...” (<i>Ibid.</i>) Primarily, Arsenian asserts that Dascanio failed to plead a common legal obligation or joint liability, sufficient to support claims for indemnity or contribution. (Motion: 1:12-16; See also 11:12-14.) “Equitable indemnity, which requires no contractual relationship, is premised on a joint obligation to another for damages; it is subject to allocation of fault principles and comparative equitable apportionment of loss.” (<i>C.W. Howe Partners Inc. v. Mooradian</i> (2019) 43 Cal.App.5th 688, 700.) “The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is...equitably responsible.” (<i>Ibid.</i>) The Cross-Complaint alleges that Arsenian had an attorney-client relationship with Marco Santamaria. (¶12 of Cross-Complaint.) Arsenian concedes that Dascanio alleges “that he proposed...that the settlement funds be deposited into a joint trust account requiring both Dascanio and Arsenian to consent to distribution of funds, and that Arsenian refused that proposal.” (See SSUF No. 22.) It is similarly undisputed that Dascanio “alleges that Arsenian’s refusal to agree to the joint account resulted in a delay in payment to Santamaria of his portion of the settlement money.” (SSUF No. 23.) Additionally, Dascanio alleges “that Arsenian advised Santamaria that the settlement funds should not be deposited into a jointly controlled account.” (SSUF No. 25.) Nonetheless, Arsenian asserts “Dascanio pleads no independent tort by Arsenian against Santamaria...” (Motion: 4:20-21.)
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		In prior challenges to this Cross-Complaint, the Court interpreted the above allegations as alleging malpractice. (See ROA No. 830 [ruling on anti-SLAPP] and ROA No. 835 [ruling on demurrer].) Despite these prior findings, Arsenian does not address the underlying facts alleged, whether liability can be established thereon or, specifically, whether malpractice can be shown. At best, the motion asserts without citation to authority or evidence that “Arsenian’s alleged refusal to accept Dascanio’s proposed joint-account condition does not create a duty owed by Arsenian to Santamaria, does not make Arsenian a tortfeasor as to Santamaria, and does not transform Dascanio’s alleged refusal to release or endorse a settlement funds into common liability shared with Arsenian.” (Motion: 12:21-27; See also Motion: 17:15-16.) “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) Within its Reply, Arsenian asserts that Dascanio failed to present “expert opinion or other opposition evidence” which establishes malpractice (Reply: 3:22-23); however, it is a moving defendant’s burden to establish “that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action” (Code Civ. Proc., § 437c, subd. (p)(2)) and “a plaintiff has no evidentiary burden on summary judgment unless and until the moving defendant first meets its initial burden.” (<i>Dix v. Live Nation Entertainment, Inc.</i> (2020) 56 Cal.App.5th 590, 604-605.) The Court notes that it is undisputed that the Cross-Complaint does not <i>expressly</i> allege “tortious interference, malicious prosecution/wrongful use of civil proceedings, fraud, intentional misrepresentation, professional negligence or legal malpractice against Santamaria,” as the Cross-Complaint does not identify the specific legal theory, upon which liability against Arsenian is premised. (See SSUF No. 31.) At best, the parties appear to agree to the existence of a slight pleading defect. “A defendant’s motion for summary judgment necessarily includes a test of the sufficiency of the complaint.” (<i>American Airlines, Inc. v. County of San Mateo</i> (1996) 12 Cal.4th 1110, 1117.) “When a motion for summary judgment is used to test whether the complaint states a cause of action, the court will apply the rule applicable to demurrers and accept the allegations of the complaint as true.” (<i>Ibid.</i>)
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